

SiyaBusa ERP

NDA

Legal Documentation

Masaphokati Technologies (Pty) Ltd

Document Version: 1.0

Effective Date: January 2026

Department: Legal

Classification: Confidential

WE RULE. WE GOVERN. WE EMPOWER.

NON-DISCLOSURE AGREEMENT

CONFIDENTIALITY AGREEMENT

Standard Non-Disclosure Agreement for use in business engagements, compliant with South African law including POPIA.

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of _____ ("Effective Date")

BETWEEN:

DISCLOSING PARTY:

Masaphokati Technologies (Pty) Ltd (trading as "SiyaBusa ERP")

Registration Number: _____

Address: _____

Represented by: Sibusiso Mavuso (CEO)

Email: sibusiso@sgbsgroup.co.za

Tel: +27 74 012 6873

(hereinafter referred to as the "**Disclosing Party**")

AND:

RECEIVING PARTY:

Name/Company: _____

Registration Number (if applicable): _____

Address: _____

Represented by: _____

Email: _____

Tel: _____

(hereinafter referred to as the "**Receiving Party**")

(collectively referred to as the "**Parties**" and individually as a "**Party**")

RECITALS

WHEREAS:

A. The Disclosing Party is in the business of developing and providing enterprise resource planning software solutions, including the SiyaBusa ERP platform;

B. The Receiving Party desires to receive certain Confidential Information from the Disclosing Party for the purpose of: _____ (the "**Purpose**");

C. The Parties wish to protect the confidentiality of such information in accordance with the terms set out in this Agreement.

NOW THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

1.1 "**Confidential Information**" means any and all information, whether written, oral, electronic, visual, or in any other form, disclosed by the Disclosing Party to the Receiving Party, either directly or indirectly, including but not limited to:

(a) Technical information: software source code, object code, algorithms, system architecture, database schemas, APIs, technical specifications, designs, inventions, know-how, processes, techniques, and methodologies;

(b) Business information: business plans, strategies, financial information, pricing structures, customer lists, supplier information, marketing plans, sales data, and projections;

(c) Commercial information: contracts, proposals, quotations, tender documents, and partnership arrangements;

(d) Product information: product roadmaps, features, functionality, development plans, and release schedules;

(e) Any information marked as "Confidential," "Proprietary," or with similar designation;

(f) Any information that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

1.2 "**Representatives**" means the Receiving Party's employees, directors, officers, agents, consultants, advisors, and contractors who have a need to know the Confidential Information for the Purpose.

2. CONFIDENTIALITY OBLIGATIONS

2.1 The Receiving Party agrees to:

(a) Hold and maintain all Confidential Information in strict confidence;

(b) Not disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party;

(c) Use the Confidential Information solely for the Purpose and for no other purpose whatsoever;

(d) Protect the Confidential Information using the same degree of care it uses to protect its own confidential information of a similar nature, but in no event less than reasonable care;

(e) Limit access to Confidential Information to those Representatives who have a need to know such information for the Purpose and who are bound by confidentiality obligations no less restrictive than those contained herein;

(f) Not copy, reproduce, or duplicate any Confidential Information except as reasonably necessary for the Purpose;

(g) Not reverse engineer, disassemble, or decompile any software or other tangible objects that embody Confidential Information.

2.2 The Receiving Party shall be responsible for any breach of this Agreement by its Representatives.

3. EXCEPTIONS TO CONFIDENTIALITY

3.1 The obligations under this Agreement shall not apply to information that:

(a) Is or becomes publicly available through no fault or action of the Receiving Party;

(b) Was rightfully in the Receiving Party's possession prior to disclosure by the Disclosing Party, as evidenced by written records;

(c) Is rightfully obtained by the Receiving Party from a third party who is not bound by any confidentiality obligation to the Disclosing Party;

(d) Is independently developed by the Receiving Party without use of or reference to the Confidential Information, as evidenced by written records;

(e) Is required to be disclosed by law, regulation, or court order, provided that the Receiving Party:

(i) Gives the Disclosing Party prompt written notice of such requirement prior to disclosure (where legally permitted);

(ii) Cooperates with the Disclosing Party in seeking a protective order or other appropriate remedy;

(iii) Discloses only that portion of the Confidential Information that is legally required to be disclosed.

4. OWNERSHIP AND NO LICENSE

4.1 All Confidential Information remains the exclusive property of the Disclosing Party.

4.2 Nothing in this Agreement grants the Receiving Party any right, title, interest, or license in or to any Confidential Information, intellectual property, or other proprietary rights of the Disclosing Party.

4.3 The disclosure of Confidential Information does not constitute any representation, warranty, or guarantee that such information is accurate, complete, or fit for any particular purpose.

5. RETURN OF CONFIDENTIAL INFORMATION

5.1 Upon written request by the Disclosing Party, or upon termination or expiration of this Agreement, the Receiving Party shall promptly:

- (a) Return to the Disclosing Party all tangible materials containing Confidential Information;
- (b) Destroy all copies, notes, summaries, and other materials derived from or containing Confidential Information in the Receiving Party's possession or control;
- (c) Provide written certification of such return and destruction within fourteen (14) days.

5.2 Notwithstanding the above, the Receiving Party may retain one (1) archival copy of Confidential Information solely for legal compliance purposes, provided such copy remains subject to the confidentiality obligations of this Agreement.

6. TERM AND TERMINATION

6.1 This Agreement shall commence on the Effective Date and shall continue for a period of **three (3) years** thereafter, unless earlier terminated.

6.2 Either Party may terminate this Agreement at any time by giving thirty (30) days' written notice to the other Party.

6.3 The confidentiality obligations contained herein shall survive termination or expiration of this Agreement for a period of **five (5) years** from the date of disclosure of the relevant Confidential Information.

7. REMEDIES

7.1 The Receiving Party acknowledges that:

- (a) The Confidential Information is valuable and unique;
- (b) Unauthorized disclosure or use of Confidential Information may cause irreparable harm to the Disclosing Party for which monetary damages may be inadequate.

7.2 In the event of any breach or threatened breach of this Agreement, the Disclosing Party shall be entitled to:

- (a) Seek injunctive relief, specific performance, or other equitable remedies without the necessity of proving actual damages or posting any bond;
- (b) Recover all damages, including consequential and special damages, arising from such breach;
- (c) Recover all reasonable legal fees, costs, and expenses incurred in enforcing this Agreement.

7.3 The remedies provided herein are cumulative and not exclusive of any other remedies available at law or in equity.

8. NO WARRANTY

8.1 ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, OR COMPLETENESS.

8.2 The Disclosing Party shall not be liable for any damages arising from the Receiving Party's use of or reliance on the Confidential Information.

9. GOVERNING LAW AND JURISDICTION

9.1 This Agreement shall be governed by and construed in accordance with the laws of the **Republic of South Africa**.

9.2 Any dispute arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of the **Republic of South Africa**, with venue in **Gauteng**.

9.3 The Parties agree to attempt to resolve any dispute through good faith negotiation before initiating legal proceedings.

10. GENERAL PROVISIONS

10.1 **Entire Agreement:** This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior agreements, understandings, and representations, whether written or oral.

10.2 **Amendments:** No amendment, modification, or waiver of this Agreement shall be effective unless in writing and signed by both Parties.

10.3 **Severability:** If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

10.4 **Assignment:** The Receiving Party may not assign or transfer this Agreement or any rights or obligations hereunder without the prior written consent of the Disclosing Party.

10.5 **Waiver:** The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of such provision or the right to enforce it at a later time.

10.6 **Notices:** All notices under this Agreement shall be in writing and delivered by hand, registered mail, or email to the addresses set forth above, or to such other address as a Party may designate in writing.

10.7 **Counterparts:** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

10.8 **No Partnership:** Nothing in this Agreement shall be construed as creating a partnership, joint venture, agency, or employment relationship between the Parties.

11. PROTECTION OF PERSONAL INFORMATION ACT (POPIA) COMPLIANCE

11.1 To the extent that any Confidential Information includes personal information as defined in the Protection of Personal Information Act 4 of 2013 ("POPIA"), the Receiving Party agrees to:

- (a) Process such personal information only in accordance with the Purpose;
- (b) Implement appropriate technical and organizational measures to protect personal information against unauthorized access, loss, or destruction;
- (c) Not transfer personal information outside the Republic of South Africa without the Disclosing Party's prior written consent and appropriate safeguards;
- (d) Notify the Disclosing Party immediately upon becoming aware of any actual or suspected data breach;
- (e) Comply with all applicable provisions of POPIA and any related regulations.

12. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DISCLOSING PARTY: Masaphokati Technologies (Pty) Ltd

Signature:	_____
Name:	Sibusiso Mavuso
Title:	CEO & Founder
Date:	_____
Place:	_____

RECEIVING PARTY:

Signature:	_____
Name:	_____
Title:	_____
Date:	_____
Place:	_____

WITNESSES

Witness 1 (for Disclosing Party):

Signature:	_____
Name:	_____
ID Number:	_____
Date:	_____

Witness 2 (for Receiving Party):

Signature: _____

Name: _____

ID Number: _____

Date: _____

SCHEDULE A: DESCRIPTION OF CONFIDENTIAL INFORMATION

The following categories of Confidential Information may be disclosed under this Agreement:

1. Product Information:

- SiyaBusa ERP software features, functionality, and roadmap
- Technical architecture and system design
- Pricing structures and commercial terms

2. Business Information:

- Business plans and strategies
- Financial projections and data
- Customer and market information

3. Technical Information:

- Software demonstrations and prototypes
- API documentation and specifications
- Integration capabilities

4. Other:

◦ _____

◦ _____

SCHEDULE B: PERMITTED PURPOSES

The Confidential Information may be used solely for the following Purpose(s):

Evaluation of SiyaBusa ERP for potential purchase/licensing

Due diligence for potential investment

Partnership/Reseller discussions

Integration/Technical collaboration

Beta testing/Pilot program participation

Other: _____

This Non-Disclosure Agreement complies with South African law, including the Protection of Personal Information Act (POPIA) and common law principles governing confidentiality.

Document Reference: NDA-SGBS-_____

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